Discuss and Possibly Adopt Revisions to Board Policy BDD (Local)

Recommendation:
That the Board of Trustees adopt updated Local Board Policy BDD Board Internal Organizational Attorney.

Explanation:
Administration presented recommended revisions to Board Policy BDD Local. The Administration recommends that the updated Local Board Policy BDD be adopted as presented.

Policy Reference: BDD Local

Recommended by:

Dr. Ted Landry
Interim Superintendent of Schools

~~The Board shall employ an attorney to serve as the District's general counsel and representative in matters requiring legal services. The District's general counsel, on behalf of the Board, may retain a private attorney or firm to represent the District in legal matters involving an ethical conflict of interest for the general counsel or requiring specialized legal knowledge. Services to be performed and reasonable fees and expenses to be paid by the District to a private attorney or firm shall be set forth in an engagement letter between the Board and the attorney or firm.~~

~~Individual Trustees shall channel legal inquiries through the Superintendent or general counsel, as appropriate, when advice or information from the District's outside legal counsel is sought. The Board President may make legal inquiry to retained, outside legal counsel directly, when circumstances so require.~~

~~A staff request for legal advice from the District's outside legal counsel must be submitted through the Superintendent or general counsel.~~

Board Authority

The Board shall have final authority to retain legal counsel—either internal or external—or a law firm to represent the Board, the District, or both. External services to be performed, along with all reasonable fees and expenses to be paid by the District, shall be outlined in a written engagement letter between the Board and the retained counsel or firm.

District General Counsel

The Board shall retain internal or external counsel or a law firm to serve as the District's General Counsel.

The District shall establish protocols for the Superintendent and District staff to request legal advice from the District's General Counsel. Requests should be submitted in writing when appropriate.

Unless the Board has retained separate legal counsel to serve as Board General Counsel, the District General Counsel shall also provide legal services to the Board.

The District General Counsel or Superintendent may recommend that the Board retain external counsel or a law firm to represent the District in legal matters when:

1. An ethical conflict of interest exists for the District's General Counsel, or
2. The matter requires specialized legal expertise beyond the General Counsel's scope.

Advice from the District's General Counsel shall be reported to the Superintendent or the Board, either upon request or when the General Counsel deems it necessary.

District General Counsel and the Board

The District General Counsel may assist individual Board members in carrying out their official responsibilities and may provide legal guidance related to their Board service.

Board members may request a formal written legal opinion on matters of significance to the Board or District. Such requests must be submitted in writing to the District General Counsel.

Upon receiving a written request for a legal opinion, the District General Counsel shall notify the full Board. Any formal legal opinion prepared in response shall be distributed to all Board members simultaneously.

Board General Counsel

The Board may also retain external legal counsel or a law firm to serve as Board Counsel, representing and advising the Board independently of the District. Board Counsel serves the Board as a whole.

Board Counsel may assist individual Board members in fulfilling their official responsibilities and provide legal guidance on matters related to their service. However, any advice or opinion that pertains to Board-wide governance or matters of material significance shall be shared with the full Board.

Board members may request a formal written legal opinion on matters of significance to the Board or District. Such requests must be submitted in writing to the Board Counsel.

Upon receiving a written request for a legal opinion, Board Counsel shall notify the full Board. Any formal legal opinion prepared in response shall be distributed to all Board members simultaneously.

Board Counsel may consult with the Superintendent, District staff, other legal counsel, or outside entities as appropriate in order to effectively represent and advise the Board.